

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION NO. 2001 OF 2023

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-And-

IN THE MATTER OF:

Md. Moinul Haque Chunu.

.....Petitioner.

-Versus-

The Judge, Election Appeal Tribunal, Natore
and others.

....Respondents.

Mr. B.M. Elias, Advocate with

Ms. Roksana Parvin Kabita, Advocate

..... For the petitioner.

Mr. A.M. Amin Uddin, Senior Advocate with

Mr. Md. Mehedi Hasan Chowdhury

Mr. ABM Abdullah Al Mahmud (Bashar) and

Mr. Swapnil Bhattacharya, Advocates

..... For the respondent No.3

Heard on: 21.06.2023, 25.07.2023,

26.07.2023 and Judgment on :

30.08.2023.

Present:

Mr. Justice Md. Khasruzzaman

&

Mr. Justice Md. Khairul Alam

Md. Khairul Alam, J;

By filing this writ petition under Article 102 of the Constitution of
the People's Republic of Bangladesh the petitioner has challenged the
legality and propriety of the judgment and order dated 17.01.2023 passed
by the Election Appellate Tribunal, Natore in Election Appeal No. 3 of

2022 affirming Order No. 26 dated 05.09.2022 passed by the Election Tribunal, Natore in Election Case No. 18 of 2022 (annexure- C & C1) deciding to recount the ballot papers for the post of Chairman of Kolom Union Parishad fixing the date on 25.09.2022.

Relevant facts for disposal of the Rule Nisi are that the present petitioner Md. Moinul Haque Chunu was the candidate for the post of Chairman in the election of Kolom Union Parishad, Shingra, Natore held on 26.12.2021. In the said election, the symbol of the petitioner was “Hourse”. Respondent No. 3 Md. Nasir Uddin contested the election with the symbol “Boat” and respondent No. 4 Md. Reaz Uddin contested the election with the symbol “Pineapple”. After the election, the election result was declared showing the petitioner to have received 8205 votes and respondent No. 3 to have received 8198 votes. Accordingly, the petitioner was declared elected by the concerned Returning Officer by a margin of 7 votes. The election result was published in the official gazette on 15.01.2022. Being aggrieved by and dissatisfied with the said election result respondent No. 3 filed Election Case No. 18 of 2022 before the Election Tribunal, Natore (shortly, the Tribunal) making a number of allegations including improper counting of ballot papers in collusion with the Presiding Officers. The petitioner as defendant No. 1 has been contesting the case by filing a written objection denying the material allegations made in the election petition contending, *inter alia*, that at the time of counting of ballot papers polling agents of the contesting candidates were present at all the polling stations and none of the said

agents raised any objection to anyone as to the irregularities of counting of ballot papers.

During trial contending parties adduced evidence in support of their respective case. After the conclusion of the evidence, the Tribunal considering the evidence on record by Order No. 26 dated 05.09.2022 decided to recount the ballot papers for the post of Chairman of Kolom Union Parishad fixing the date on 25.09.2022 against which the petitioner preferred Election Appeal No. 03 of 2022 before the Election Appellate Tribunal, Natore (shortly, the Appellate Tribunal) and the same was dismissed by the judgment and order dated 17.01.2023.

Being aggrieved thereby the petitioner filed this writ petition and obtained the Rule Nisi and the order of stay.

Respondent No. 3 is contesting the Rule by filing an affidavit in opposition denying the material allegations made in the writ petition.

Mr. B.M. Elias, the learned Advocate appearing for the petitioner at the outset submits that prayer for recounting of ballot papers if not made by the defeated candidate or his agent before the Presiding Officer on conclusion of counting at the polling station as per the provision of the rule 39 (2) of the স্থানীয় সরকার (ইউনিয়ন পরিষদ) নির্বাচন বিধিমালা, ২০১০ (shortly, the Rules, 2010) or before the Returning Officer before the declaration of the election result as per the provision of the rule 41 (5) of the Rules, 2010 the foundation for recounting of ballot papers cannot be said to have been present. The Tribunal and the Appellate Tribunal had failed to appreciate the said provision of the law and thereby failed to appreciate that sufficient foundation for recounting of ballot papers was not established

by the plaintiff-respondent No. 3 necessitating recounting of ballot papers since admittedly, neither respondent No. 3 nor his agent made any complaint to the concerned Presiding Officer on the spot or to the Returning Officer before the declaration of the election result requesting recounting of ballot papers. Therefore, the impugned judgment and order for recounting of ballot papers is without jurisdiction. In support of his submission, the learned Advocate relies upon the cases of *Md. Shajahan vs. Md. Sadeq* reported in 38 DLR (AD) 275 and *Muzaffar Hossain vs. Humayun Kabir* reported in 48 DLR (AD) 59. He next submits that both the tribunals below passed the impugned order for recounting the ballot papers without reference to the evidence tendered by the witnesses and thereby acted illegally in passing the impugned judgment and order occasioning miscarriage of justice. In support of the submission, the learned Advocate refers to the cases of *Abdul Haque vs. Fazlul Huq* reported in 38 DLR (AD) 401.

On the other hand, Mr. A.M. Amin Uddin, the learned Senior Advocate appearing for respondent No. 3 contends that the Tribunal is empowered to order for recounting of the ballot papers for proper adjudication of the election petition, therefore the Tribunal below rightly decided for recounting of the ballot papers and the Appellate Tribunal affirmed the same. In support of the submission, the learned Advocate relies upon the case of *SM Fazlul Haque Manik vs. Md. Habibullah Bahar and others* reported in 61 DLR (AD) 66. He next submits that by the impugned order, the Tribunal rightly decided to recount the ballot papers in the presence of the contending parties keeping in the view that there

was a difference of only seven votes between the petitioner and respondent No. 3 which can only be adjudicated by recounting of the ballot papers. In support of the submission, the learned Advocate relies upon the cases of *Md. Khalilur Rahman vs. Md. Alam Bepari and others* reported in 14 MLR (AD) 43.

We have gone through the writ petition, affidavit in opposition, and supplementary affidavit in opposition and perused the documents annexed thereto.

It appears that the respondent No. 3 has filed the election petition making several allegations including improper and perfunctory counting of ballot papers in collusion with the Presiding Officers. The petitioner has been contesting the said election petition denying the material allegations. In course of trial, both the petitioner and respondent No. 3 adduced evidence in support of their respective case. After the conclusion of the evidence the Tribunal considering the evidence on record, by the impugned order, came to the finding that as there was a difference of only 7 votes between the petitioner and respondent No. 3 the ballot papers are required to be recounted for proper adjudication of the dispute of the election petition, and thereby fixed the date for recounting. The main contention of the petitioner against the said order of recounting is that respondent No. 3 being the plaintiff failed to establish the foundation for recounting the ballot papers.

Admittedly, in the concerned Act and Rules there are no specific guidelines for tribunals as to when they can and cannot recount the ballot papers. The guidelines for recounting of ballot papers by

tribunals have been developed through several judicial pronouncements. In the course of the hearing, several such pronouncements have been referred to this Court by the contending parties. From the said pronouncements it appears that tribunals will not decide to recount the ballot papers as a matter of right of the defeated candidate, but will recount the same if satisfied on the basis of evidence that a foundation for recounting is present. It also appears that the interpretation of the term “foundation for recounting” has been enriching constantly through the judicial pronouncements.

In the case of *Md. Khalilur Rahman vs. Md. Alam Bepari and others* reported in 14 MLR (AD) 43 our apex Court observed as follows:

“It appears that the Election Appellate Tribunal has considered the evidence of P.W.1, 2 and 3 and also considered the facts and circumstance of the case and the evidence of O.P.W. No.1 and 2 came to the finding that the election petitioner has succeeded in proving factual foundation for recounting of the ballot papers. The Election Appellate Tribunal appears to have applied his mind in the facts and circumstances of the case and the evidence on record keeping in view that there was a difference of only one vote between the petitioner and the respondent No.1 and admittedly 5 ballot papers, which were duly cast during election, were found missing and on consideration of these facts the Election Tribunal came to the conclusion that it would be proper for ends of justice if the ballot papers are recounted in presence of the concerned parties.”

In the case in hand, from the record it appears that the difference between the petitioner and respondent No. 3 was only 7 votes and the number of invalid votes was 246 therefore as per the above view of our apex Court, we are of the opinion that the tribunals below rightly came to the finding that it would be proper for ends of justice to recount the ballot papers and passed the impugned judgment and order.

We have carefully gone through the judgment and order passed in the cases cited by the learned Advocate for the petitioner. The facts and circumstances of the said cases are fully distinguishable from the facts and circumstances of the present case. Therefore, the ratio settled in those cited cases is not applicable in the present case.

In view of the above discussions, we do not find any merit in the Rule.

Accordingly, the Rule is discharged without any order as to costs.

The order of stay, granted at the time of issuance of the Rule, is hereby recalled and vacated.

Communicate the judgment and order at once.

Md. Khasruzzaman, J:

I agree

Kashem, B.O